IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No.1
CA(CAA)-53/2021

IN THE MATTER OF:

Govindam Dresses Pvt. Ltd. And M/s Diksha Windsor computers Pvt. Ltd. ... **Applicant/Petitioner**

Under Section: 230-232

Order delivered on 24.05.2021

CORAM:
SHRI. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (J)

SHRI. L. N. GUPTA, HON'BLE MEMBER (T)

PRESENT:

ORDER

Order is Pronounced in theOpen Court today.

Sd/-
(L.N. GUPTA)
MEMBER (T)

Sd/-
(ABNI RANJAN KUMAR SINHA)
MEMBER (J)

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NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- II)

C.A.(CAA)-53/ND/2021

IN THE MATTER OF SCHEME OF AMALGAMATION :

AMONGST

GOVINDAM DRESSES PRIVATE LIMITED

... Applicant No.1/Transferor Company

AND

ANSU INFOTECH PRIVATE LIMITED

...Applicant No.2/ Transferor Company

WITH

DIKSHA WINDSOR COMPUTERS PRIVATE LIMITED

...Applicant No.3/ Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on : 24.05.2021

Section: 230 to 232 of the Companies Act, 2013

CORAM

SH. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)

SH. L. N. GUPTA, HON'BLE MEMBER (TECHNICAL)

PRESENT

For Applicants : Mr. Abhishek Nahta, CA

ORDER

PER SHRI L.N. GUPTA, MEMBER (T)

The present Application No. C.A.(CAA)53/ND/2021 is filed under Sections 230 to 232 of the Companies Act, 2013 with a prayer to dispense with convening and holding of the meetings of Shareholders and Creditors of the Transferor and Transferee Companies in connection with the 'Scheme of Amalgamation', which shall take effect from the 'Appointed Date' of 01.04.2020.

2. That Govindam Dresses Private Limited (hereinafter referred as the **"Transferor Company No.1")** having CIN no. U1810DL2005PTC134718 is a private limited company incorporated under the Erstwhile Companies Act, 1956 on 05.04.2005. The registered office of the Transferor Company No.1 is situated at 107, D.D.A Hog Market, Rajendra Place New Delhi-110008.

3. That Ansu Infotech Private Limited (hereinafter referred as the **"Transferor Company No. 2"**) having CIN no. U4999DL2005PTC135840 is a company incorporated under the Erstwhile Companies Act, 1956 on 04.05.2005. The registered office of the Transferor Company No.2 is situated at 107, D.D.A Hog Market, Rajendra Place New Delhi-110008.

4. That Diksha Windsor Computers Private Limited (hereinafter referred as the **"Transferee Company "**) having CIN no. U72200DL2006PTC271618 is a company incorporated under the Erstwhile Companies Act, 1956 on 20.06.2006. The registered office of the Transferee Company is situated at 2, Sardar Patel Marg, Diplomatic Enclave, New Delhi-110021

5. That the present Petition has been jointly filed by both the Transferor Companies and the Transferee Company. All the 'Transferor' and 'Transferee' Companies together are called 'Applicant Companies' hereinafter. That the Registered offices of the Applicant Companies are in situated in Delhi. Therefore, the jurisdiction lies with this Tribunal.

6. It is seen from the record that the Board of Directors of the Transferor Company no.1 and 2 vide separate meetings held on 01.03.2021 have approved the proposed 'Scheme of Amalgamation'. It is further noticed that the Board of Directors of the Transferee Company vide its meeting held on 27.02.2021 have also approved the proposed 'Scheme of Amalgamation'.

7. It is stated by the Applicant Companies that the aforesaid Scheme of Amalgamation has the following objectives :

i. *Effective Management Control and improved organizational capability arising from pooling of managerial, financial and technical resources.*

ii. *Reduction of administrative costs, operative and overhead expenses which would further lead to cost efficiency and optimum utilization of the available resources.*

iii. *Result in significant reduction in the multiplicity of legal and regulatory compliances required at present to be carried out by the Transferor and Transferee Companies; and .....”*

8. That all the Applicant Companies have filed their Affidavits in compliance of Section 230(2)(a) of the Companies Act, 2013 submitting therein that none of the Applicant Companies are under any prosecution/ investigation/ inquiry under the Companies Act, 2013.

9. That the Applicant Companies have also placed on record the Certificate from the Statutory Auditors conforming that their Accounting Standards are in conformity with the provision of Section 133 of the Companies Act 2013.

10. That the Applicant Companies have filed their respective Memorandum of Association (MoAs) and Articles of Association (AoAs). The Applicant Companies have also filed their latest Balance Sheets as on 31.03.2020.

11. That the position regarding the Applicant Company-wise no. of Shareholders and Creditors and their Consent through Affidavits is summarised overleaf :

Company	No. of Share holders	Percentage of Shareholders given Consent	No. of Unsecured Creditors	Percentage of Unsecured Creditors given Consent (in value)
Govindam Dresses Private Limited Applicant No.1 Company/ Transferor	3	100%	1	100% (in value)
Ansu Infotech Private Limited Applicant No.2/ Transferor Company	2	100%	3	100% (in value
Diksha Windsor Computers Private Limited Applicant No.3/ Transferee Company	2	100%	Nil	NA

12. That it is submitted that all the shareholders of the Applicant Companies have given 'no objection' to the Scheme on respective affidavits. Therefore, the requirement of convening the Meetings of Shareholders in respect of the Applicant Companies is dispensed with.

13. That the '100% in value' of the unsecured creditors in the Applicant Company No. 1 and 2 have given 'no objection' to the Scheme on respective affidavits. Therefore, the requirement of convening the Meetings of Unsecured Creditors in respect of all the Applicant Companies no.1 and 2 is dispensed with.

14. That further, there are no unsecured creditors in Applicant No. 3 Company. Therefore, the requirement of convening their meeting does not arise.

15. Since there are no Secured Creditors in any of the Applicants Companies, the requirement of convening their meeting does not arise.

16. **The Application is allowed in the aforesaid terms.**

-S/d-

(L.N. Gupta)
Member (T)

-S/d-

(Abni Ranjan Kumar Sinha)
Member (J)